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Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

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Submitter Information

Name: Thomas Hyldahl

Address:

General Comment

I strongly oppose the codification of AI training as fair use. It breaks every litmus test of the fair use standard: it is not transformative since AI-created work is ineligible for copyright in of itself; it uses commercial, fictional works; it utilizes the entire copyrighted work for the use of training, it is an explicitly commercial use with an immense potential for market distortion.

AI is a system designed to take the work of artists, writers, and creatives--the very people that copyright law was created to protect--and to directly compete against them. Already, AI-generated slop has threatened countless websites, and Gemini has turned Google from many websites' biggest source of revenue via increased web traffic into its biggest competitor.

Some may express concern about "losing" the AI "race" to China, but the reality is that these AI tools are far, far more limited than what we have been promised. Most of their use cases are inferior duplicates of what we already pay humans to do, and these AI models are far more expensive than a comparable human--for reference, see OpenAI charging \$20,000 per *month* for its new "PhD-level" AI, when most freshman PhD researchers make half that.

Large language models are a dead end. They are a cheap trick pushed by charlatans and do not deserve any special protections, and the world will be better off once they are gone.